

THE DIGITAL PERSONAL DATA PROTECTION ACT, 2023 (NO. 22 OF 2023)

CHAPTER I: PRELIMINARY AND APPLICABILITY

An Act to provide for the processing of digital personal data in a manner that recognizes both the right of individuals to protect their personal data and the need to process such personal data for lawful purposes. This Act applies to the processing of digital personal data within the territory of India where such data is collected in digital form or digitized subsequently.

CHAPTER II: OBLIGATIONS OF DATA FIDUCIARY

Section 5 & 6: Notice and Consent.

- (1) Every request for consent shall be preceded or accompanied by a clear notice specifying the personal data sought and the purpose of processing.
- (2) Consent given by the Data Principal shall be free, specific, informed, unconditional, and unambiguous with a clear affirmative action.
- (3) The Data Principal shall have the right to withdraw consent at any time with the same ease with which consent was given.

CHAPTER II: SECURITY SAFEGUARDS AND BREACH REPORTING

Section 8: General obligations of Data Fiduciary.

(1) A Data Fiduciary shall implement appropriate technical and organizational measures to ensure effective adherence with the provisions of this Act.

(2) A Data Fiduciary shall protect personal data in its possession or under its control by taking reasonable security safeguards to prevent personal data breach.

(3) In the event of a personal data breach, the Data Fiduciary shall give the Data Protection Board of India and each affected Data Principal intimation of such breach in such form and manner as may be prescribed.

CHAPTER VII: PENALTIES AND ADJUDICATION

Section 33: Financial Penalties.

The Data Protection Board may impose significant financial penalties for non-compliance:

- (1) Breach in observing the obligation to take reasonable security safeguards to prevent personal data breach under sub-section (5) of section 8: Penalty may extend up to two hundred and fifty crore rupees (Rs 250,00,00,000 / INR 250 Crores).
- (2) Failure to notify the Board and affected Data Principals of a personal data breach under sub-section (6) of section 8: Penalty may extend up to two hundred crore rupees (Rs 200,00,00,000).
- (3) Non-fulfilment of additional obligations in respect of children: Penalty may extend up to two hundred crore rupees.